



**MEETING MINUTES
LANCASTER COUNTY BOARD OF COMMISSIONERS
TUESDAY JANUARY 14, 2024, AT 9:00 AM
COUNTY-CITY BUILDING, ROOM 112**

**COMMISSIONERS: Rick Vest, Chair; Christa Yoakum, Vice Chair;
Chelsea Johnson, Sean Flowerday, and Matt Schulte**

Advance public notice of the Board of Commissioners meeting was posted on the County-City Building bulletin board, posted to the Lancaster County, Nebraska website, emailed to the media, and published in the Lincoln Journal Star print and digital editions on January 10, 2025.

Commissioners present: Rick Vest, Chair
Christa Yoakum, Vice Chair
Chelsea Johnson
Sean Flowerday
Matt Schulte

Others present: David Derbin, Chief Administrative Officer
Kristy Bauer, Deputy Chief Administrative Officer
Andrew Barness, Deputy County Attorney
Matt Hansen, County Clerk
Meggan Funke, County Clerk's Office

Vest called the meeting to order at 9:00 a.m. and led the Pledge of Allegiance. The Clerk announced the location of the Nebraska Open Meetings Act.

1. MINUTES – Approval of the minutes of the Board of Commissioners meeting held on January 7, 2025

MOTION: Flowerday moved and Schulte seconded approval of the minutes. Flowerday, Schulte, and Vest voted yes. Johnson abstained. Yoakum was absent. Motion carried 3-0 with one abstention.

2. CLAIMS

A. Approval of the claims processed through January 10, 2025.

The Clerk noted there was an amendment to the claims to include the most recent payroll claim (Exhibit 1).

MOTION: Flowerday moved and Johnson seconded approval of the claims with the amendment. Schulte, Flowerday, Johnson, and Vest voted yes. Yoakum was absent. Motion carried 4-0.

B. Approval of the claims including billing for goods and services beyond the 90-day time period provided in Neb. Rev. Stat. § 23-135:

1. Backbone Inc dated January 13, 2025, for a total of \$2,299.02.

MOTION: Schulte moved and Flowerday seconded approval of the claims. Johnson, Schulte, Flowerday, and Vest voted yes. Yoakum was absent. Motion carried 4-0.

Yoakum entered the meeting at 9:03 a.m.

3. **CONSENT ITEMS** These are routine business items that are expected to be adopted without dissent. Any individual item may be removed for special discussion and consideration by a Commissioner or by any member of the public without prior notice. Unless there is an exception, these items will be approved as one with a single vote of the Board of Commissioners. These items are approval of:

A. Amendments to the following County contracts:

1. C-19-0884 with Kone Inc for the annual elevator and escalator service, maintenance and testing. (Bid 19-258. The amendment extends the contract from January 1, 2025, through December 31, 2028. The cost to the County shall not exceed \$32,544.) (C-25-0016)
2. C-21-0724 with Vigilant Solutions LLC for a mobile license plate reader system and software licenses. (Sole Source SS-160. The amendment renews the contract from January 2, 2025, through January 1, 2026. The cost to the County is not to exceed \$110,000.) (C-25-0015)
3. C-18-0193 with The Home Depot USA Inc for maintenance, repair, operating (MRO) supplies, industrial supplies and related products. (OMNIA, Previously U.S. Communities Contract, Serial16154-RFP. MOU022. The amendment renews the contract from January 1, 2025, through December 31, 2025. The estimated cost to the County is not to exceed \$5,000.) (C-25-0017)
4. C-20-0341 with Whitehead Oil Company for the annual supply of motor fuel. (Bid 20-137. The amendment extends the contract for an additional term beginning December 21, 2024, through February 20, 2025. The cost to County shall not exceed \$725,000.) (C-25-0026)
5. C-24-0940 with Genesis Contracting Group LLC for construction for the SquareOne Family Resource Center. (Bid 24-212. The amendment corrects the total dollar amount per Attachment A from \$1,523,000 to \$1,583,000. The cost to County shall not exceed \$1,583,000.) (C-25-0029)
6. C-23-0750 with the Asian Community & Cultural Center for the Welcoming Coordinator program. (The amendment extends the term for one year from January 1, 2025, through December 31, 2025, for an amount of \$75,000.) (C-25-0031)
7. C-24-0103 with YWCA of Lincoln for Diversity, Equity, Inclusion, and Consensus Building training for members of Government Alliance on Race Equity (GARE). (The amendment extends the term for one year from December 1, 2024, through November 30, 2025, for an amount of \$26,950.) (C-25-0022)
8. C-22-0883 between Toni G Jensen, the County, the Lincoln Community Foundation Inc, and Woods Charitable Fund Inc for the provision of a community needs assessment of victim and survivor services in Lancaster County. (The amendment extends the term of the contract to December 31, 2025. There is no additional cost to the County.) (C-25-0033)
9. C-22-0077 with Total Tool Supply Inc for the annual supply of power and hand tools. (Bid 22-012. The amendment renews the contract for an additional term beginning February 1, 2025, through January 31, 2026. The cost to County shall not exceed \$6,000.) (C-25-0034)

B. Utility Permit 2595 with Charter Spectrum for installation of fiber. (The project starts on West Waverly Road and splits three ways at Northwest 140th Street. See utility permit for additional description.) (C-25-0020)

C. Utility Permit 2597 with Allo Communications for installation of underground fiber. (The project starts on Saltillo Road. See utility permit for additional description.) (C-25-0021)

D. Grant contracts with the following, (funding is from the Joint Budget Committee for the term of November 1, 2024, through June 30, 2025.):

1. St. Mark's Preschool for the Childcare Assistance program in the amount of \$20,000. (C-25-0023)
 2. Citylight North Lincoln on behalf of Rosemont Daycare & Preschool for the Childcare Assistance program in the amount of \$10,000. (C-25-0024)
 3. Parkview Christian School on behalf of Superior Child Development Center for the Childcare Assistance program in the amount of \$35,000. (C-25-0028)
- E. Grant contract with Boys & Girls Clubs of Lincoln/Lancaster County for the Great Futures: Club to Career Pathway program in the amount of \$29,492. (Funding is from the Nebraska Commission on Law Enforcement and Criminal Justice Community-based Juvenile Services Aid Enhancement Grant for the term of January 1, 2025, through June 30, 2025.) (C-25-0025)
- F. Grant contract with Clyde Malone Community Center for the CEO - The Business of Me program in the amount of \$14,000. (Funding is from the Juvenile Justice Prevention Funds for the term of January 1, 2025, through June 30, 2025.) (C-25-0030)
- G. Received and placed on file the County Attorney's report (October – December 2024).

MOTION: Flowerday moved and Johnson seconded approval of the consent items. Flowerday, Johnson, Schulte, Yoakum, and Vest voted yes. Motion carried 5-0.

4. NEW BUSINESS

- A. Resolution authorizing the County Board Chair to sign the County Bridge Match Program (CBMP) Agreement with the Nebraska Department of Transportation (NDOT) to repair or replace County Bridge G-222. (West of Sec 24 North Bluff at Salt Creek; Project C005543520.) (R-25-0003)

Pam Dingman, County Engineer, noted the \$500,000 agreement is part of a federal grant to help repair bridges.

MOTION: Yoakum moved and Johnson seconded approval of the resolution. Yoakum, Flowerday, Johnson, Schulte, and Vest voted yes. Motion carried 5-0.

- B. County Bridge Match Program (CBMP) Agreement with the Nebraska Department of Transportation (NDOT) to repair or replace County Bridge G-222. (Total project cost is estimated at \$3,535,651, and for this project the State's designated share will be 55 percent of the bridge or culvert construction costs, with a maximum State contribution not to exceed \$500,000. Project C005543520) (C-25-0019)

Dingman stated Bridge G-222 is currently rated poor and is a steel structure located in the Salt Creek area. She noted the corridor has been closed since the flooding in June of 2024.

MOTION: Flowerday moved and Yoakum seconded approval of the agreement. Schulte, Yoakum, Flowerday, Johnson, and Vest voted yes. Motion carried 5-0.

- C. Resolution authorizing and directing the County Attorney's Office to correct nunc pro tunc a clerical error in County contract C-24-0939 by changing "Section 17" in the legal description of the property to read "Section 27" to conform with the applicant's real property location.

Andrew Barness, Deputy County Attorney, stated the authorization corrects a clerical error found in contract C-24-0939 that was approved and signed in December 2024.

MOTION: Flowerday moved and Schulte seconded approval of the resolution. Johnson, Schulte, Yoakum, Flowerday, and Vest voted yes. Motion carried 5-0.

- D. Recommendation from the Purchasing Agent on behalf of the County Engineer to award a contract to Van Kirk Bros Contracting for the extension of Box Culvert T-166 for the total amount is \$178,964. (Project 24-54). (B-25-004)

Dingman presented a map of the location of the box culvert extension (Exhibit 2) and stated the Engineering Office received nine bids on the project. She noted the recommendation was under the original estimate.

MOTION: Schulte moved and Yoakum seconded approval of the recommendation. Flowerday, Johnson, Schulte, Yoakum, and Vest voted yes. Motion carried 5-0.

- E. Resolution authorizing and directing the County Attorney's Office to correct nunc pro tunc a clerical error in R-25-0002 by changing "January 17" in the legal notice to read "January 7" to conform with the correct date the resolution was signed by the County Board.

Barness noted the authorization corrects a clerical error and conforms with publication requirements.

MOTION: Schulte moved and Flowerday seconded approval of the resolution authorization. Yoakum, Flowerday, Johnson, Schulte, and Vest voted yes. Motion carried 5-0.

- F. Exceptional Circumstance Award under Personal Rule 17.9 (b) for Elida Alaniz, Case Manager, for a one step pay increase.

Jeff Kilpatrick, Community Corrections Director, stated Alaniz is outstanding in her role and shows extreme professionalism as a case manager.

The Clerk read the nomination letter into the record.

MOTION: Yoakum moved and Johnson seconded approval of the award.

The Board thanked Kilpatrick for bringing the nomination forward and said they are appreciative of the work done in the Community Corrections Department.

Roll Call: Schulte, Yoakum, Flowerday, Johnson, and Vest voted yes. Motion carried 5-0.

- G. Interlocal agreement with the Lincoln-Lancaster County Health Department to provide emergency dental treatment services for juveniles referred from the Lancaster County Youth Services Center. The County agrees to pay the Health Department according to the most current Nebraska Medicaid Practitioner Fee Schedule for dental services in a total amount not to exceed \$2,000 for each contract term. (C-25-0032)

Gwendy Meginnis, Dental Division Manager for the Lincoln-Lancaster County Health Department, noted that the fees would follow the current Medicaid fee schedule.

Brad Alexander, Youth Services Center Director, expressed appreciation to the health department.

MOTION: Yoakum moved and Flowerday seconded approval of the agreement. Johnson, Schulte, Yoakum, Flowerday, and Vest voted yes. Motion carried 5-0.

- H. Revision to the Supervising Attorney classification description.

Kristi Egger, County Public Defender, stated with the increase of appeals in the Public Defender's Office a supervisor is needed.

Schulte asked for clarification on who the Supervising Attorney would supervise. Egger stated she would manage all attorneys who have appeals and one paralegal by reading briefs and overseeing the scheduling of appeals.

MOTION: Yoakum moved and Flowerday seconded approval of the revision description. Flowerday, Johnson, Schulte, Yoakum, and Vest voted yes. Motion carried 5-0.

- I. Setting the salary for Assistant Public Defender Amanda Baskin in the amount of \$133,287 as Supervising Attorney.

Schulte inquired about the pay increase. Egger stated Baskins has work experience in the Public Defender's office, experience working with appellate court judges, and experience handling felony cases.

MOTION: Yoakum moved and Flowerday seconded approval of the setting of salary. Yoakum, Flowerday, Johnson, Schulte, and Vest voted yes. Motion carried 5-0.

- J. Agreement with the County on behalf of the Lancaster County Sheriff's Office for the transfer of ownership of a police service dog to Sergeant Kory Lehr. There is no cost to the County. (C-25-0018)

Ben Houchin, Chief Deputy Sheriff, stated the name of the service dog in the agreement needed to be corrected from Sasha to Dodge. He added Dodge provided eight and half years of service and ended his service term on December 31, 2024.

Yoakum asked about the service term limits for service dogs. Houchin stated the average is eight to eight and half years for a patrol service dog.

MOTION: Yoakum moved and Johnson seconded approval of the agreement. Schulte, Yoakum, Flowerday, Johnson, and Vest voted yes. Motion carried 5-0.

- K. License agreement with the Airport Authority of the City of Lincoln for the County Sheriff to use a portion of Airport Authority property for law enforcement training. There is no cost to the County. (Term of the agreement is January 1, 2025, through December 31, 2025.) (C-25-0035)

Houchin stated the agreement was for liability purposes.

MOTION: Yoakum moved and Flowerday seconded approval of the license agreement. Johnson, Schulte, Yoakum, Flowerday, and Vest voted yes. Motion carried 5-0.

- L. Recommendation from the Southeast Nebraska Development District (SEND) to award a contract through the Lancaster County Owner Occupied Rehabilitation Housing Program for Project 020 to MIT Contracting in the amount of \$13,115.30 to replace kitchen sink plumbing pipes, install four more I-beams at the foundation wall for support, replace exterior front steps, install attic insulation, fix double taps in a breaker box, and repair the garage door.

Dennis Meyer, Budget and Fiscal Director, noted the recommendation was the first for the Village of Firth. Meyer said projects have a maximum dollar amount of \$25,000.

MOTION: Johnson moved and Yoakum seconded approval of the recommendation. Flowerday, Johnson, Schulte, Yoakum, and Vest voted yes. Motion carried 5-0.

- M. Agreement with Symetra Life Insurance Company for Stop Loss insurance coverage for the County's health insurance plan for the period beginning January 1, 2024, and ending December 31, 2024. The cost to the County for 2024 was \$956,022.16. (C-25-0037)

MOTION: Yoakum moved and Johnson seconded approval of the agreement. Yoakum, Flowerday, Johnson, Schulte, and Vest voted yes. Motion carried 5-0.

- N. Schedule of Benefits for Stop Loss insurance coverage with Symetra Life Insurance Company for the County's health insurance plan for the period beginning January 1, 2025, and ending December 31, 2025. The cost to the County for 2025 is estimated to be \$1,099,588.68. (C-25-0038)

MOTION: Yoakum moved and Flowerday seconded approval of the schedule of benefits. Schulte, Yoakum, Flowerday, Johnson, and Vest voted yes. Motion carried 5-0.

- O. Grant contract with the Indian Center for the Great Plains Youth Development program in the amount of \$27,480. (Funding is from the Juvenile Justice Prevention Funds for the term of date of Sponsor execution through June 30, 2025.) (C-25-0027)

Sara Hoyle, Human Services Director, stated the funds provide help with after school programs and tuition.

MOTION: Johnson moved and Flowerday seconded approval of the contract. Johnson, Schulte, Flowerday, and Vest voted yes. Yoakum abstained. Motion carried 4-0 with one abstention.

- P. Contract with Vanguard Cleaning System of Nebraska (Boundless Horizons Inc) for the annual cleaning services of County Engineering and Weed Control. The cost to the County shall not exceed \$17,400. (Bid 24-187. The contract shall be effective from December 8, 2024, through December 7, 2025.) (C-25-0036)

Ryan Shaw, Engineering Department Equipment Mechanic Supervisor, noted the contract provides for the annual cleaning services.

MOTION: Yoakum moved and Schulte seconded approval of the contract. Flowerday, Johnson, Schulte, Yoakum, and Vest voted yes. Motion carried 5-0.

- Q. Tort claim filed on October 31, 2024, by Hanover Insurance Company in the amount of \$10,552.62.

MOTION: Yoakum moved and Flowerday seconded approval of the tort claim. Yoakum, Flowerday, Johnson, Schulte, and Vest voted yes. Motion carried 5-0.

The meeting went into recess at 9:29 a.m. and resumed at 9:36 a.m.

5. **PUBLIC HEARING** – Regarding an appeal on Special Permit 24036 per Article 13.051 of the Lancaster County Zoning Regulations for a large Solar Energy Conversion System (SECS) for up to 304 megawatts on approximately 2,442 acres.

Vest opened the public hearing and explained the order of testifiers.

The Clerk administered the oath to George Wesselhoft, Planning Department Planner. Wesselhoft presented a map of the area (Exhibit 3) and described the project and the special permit. He noted the 2050 Comprehensive Plan supports renewable energy. Wesselhoft noted the applicant submitted a complete application that met all requirements and included additional documents that include a sight line study, an environmental compliance document, an emergency action plan, and an economic impact study. He provided and reviewed requirements and criteria needed to receive a solar energy permit from the summary report (see agenda). Wesselhoft stated the Planning Commission voted and made a motion to approve on December 18, 2024, that included changing the setbacks from 50 feet to 100 feet from the property line of any non-participating property without a dwelling and changing the site plan from 100 feet setbacks to 250 feet setbacks from the property line of any non-participating property with a dwelling on any side of the property facing solar panels. Wesselhoft stated a memo was submitted to the Board for clarification after the January 9, 2025, briefing with reference to a prior solar project, Special Permit 21042 Salt Creek Solar (Exhibit 4).

Schulte asked for clarification about the Salt Creek project setbacks. Wesselhoft stated there was an increase from 50 feet to 100 feet from the property line of any non-participating property without a dwelling and an increase from 100 feet to 250 feet of setbacks from the property line for any non-participating property with a dwelling. The site plan replaces 300-foot setbacks for non-participating properties with a dwelling that are currently in the Community Unit Plan (CUP). Schulte noted the current properties are not in a Community Unit Plan, but the Board could amend the permit to include the CUP setbacks. Wesselhoft stated yes. Schulte asked if there were any other amendments that were included in the Salt Creek Permit. Wesselhoft stated an amendment is included that only evergreen trees be used in the screening landscaping. Schulte asked for clarification for if only four properties are surrounded by the project. Wesselhoft stated there are four non-participating properties and pointed out the locations on the map (Exhibit 3).

The Clerk administered the oath to Chris Schroeder, Environment Health Supervisor, Lincoln-Lancaster County Health Department.

Schulte inquired about the noise level difference between participating properties and non-participating properties. Schroeder stated that there is no language difference in the special permit regulations.

Johnson asked for clarification on the noise decibel levels. Schroeder noted there are no County wide noise regulations and reviewed with the Board the noise regulations that are included in the special permit. Schroeder noted the noise levels are on a complaint basis and explained the complaint process.

The Clerk administered the oath to John Berry, Chief Deputy County Surveyor. Berry stated the Engineering Department had had discussions with the applicant about the road maintenance agreement and the truck routes that would be used. Berry noted that underground utility permits would need to be permitted through the Engineering Department and added the applicant understands the process. Berry stated drainage concerns have been brought up during the Planning Commission meetings. He stated the Lower Platte South NRD and the Nemaha NRD have reviewed the drainage plans and have no issues. Berry noted if the special permit moves forward, the NRD would oversee that drainage regulations are followed.

Johnson asked if the applicant would need to return the roads back to equal or better condition after the project is completed. Berry stated the Engineering Department is working with the applicant on a plan, but a site map would be provided if the special permit is approved. Yoakum inquired when the Engineering Department sees the site plans. Berry stated if the special permit is approved, the site plans would need to be provided before construction begins.

The Clerk administered the oath to David Levy, an attorney with Baird Holm LLP and attorney for the applicant, and Matt Jones, developer for the Panama Energy Center.

Levy presented and read quotes from the letters of support into the record (Exhibit 5).

Jones presented a power point presentation about the project (Exhibit 6)

Flowerday inquired about hiring local union labor. Jones stated the company would work with the community but was unsure of the company's policy. Flowerday noted that a labor agreement should be considered. Levy stated NextEra has worked with union labor in the past.

Schulte and Levy discussed how the project could affect property valuations and revenue collections of the property and the surrounding area.

Yoakum inquired about how the applicant would respond to noise level complaints. Levy stated the project would stay within the requirements maintained by the County and follow that process. Yoakum asked if the landowners who are leasing the land would continue to use the property that is not being used in the project. Jones stated in the lease agreement the property owners have the right to exclude property. Yoakum stated support for the project to use union employees.

Schulte asked about the project application timeline. Jones said he wanted adequate time in order to start construction in July. Schulte and Levy discussed the timing of the notice letter to nearby landowners.

Johnson asked when construction would end. Jones answered December of 2026. Johnson and Jones discussed the project's vegetation management plan.

The Clerk administered the oath to Chris Jorgensen, lead scientist for Olsson. He and Jones provided more information on the plan for cover crops and vegetation.

Vest asked how those involved would handle noise complaints. Jones reviewed the precautions that would be taken to design and build a facility that meets the sound requirements. Levy said they would continue to work with the health department.

The Clerk administered the oath to the testifiers in support (the sign-in sheets for these testifiers is Exhibit 7).

Gene Hanlon, County resident, encouraged approval of the project. He discussed the economic and environmental benefits and argued that the project would not affect property values.

Moni Usasz, County resident and member of Citizens' Climate Lobby, presented documentation in support (Exhibit 8). She discussed the environmental benefits and the economic benefit of preventing extreme weather events.

Anthony Strawn, County resident and representative of the Nebraska chapter of the International Union of Operating Engineers, discussed the economic and health benefits and the number of jobs it would bring to the community. He introduced other union members in attendance.

Ron Kaminski, County resident, president of the local chapter of Laborers International, and president of the Nebraska Building and Construction Trades Council, introduced other union members and apprentices in attendance. He reviewed the types of projects the union constructs. He thanked NextEra for choosing Nebraska for the project. He asked the Board to approve the project. Vest and Kaminski discussed the union members who would be involved in the project and the training involved.

The Clerk administered the oath to Sam Renshaw, Omaha resident and business manager of Laborers' Local #1140 union. He stated the union would focus on recruiting local workers to apprentice and train to work on the project. He discussed benefits the project would bring to local workers and encouraged the Board to support the project.

Todd Paddock, County resident, discussed the need for energy the project would address, the environmental benefits, and the health benefits it would bring to Nebraskans.

Ken Haar, County resident and former Lincoln City Councilmember and State Senator, discussed the benefits clean energy projects would bring for future generations, including preventing the effects of climate change. He provided documents on climate change (Exhibit 9). He noted he has lived both inside and outside the city limits of Lincoln.

Ken Winston, representative of the Nebraska Sierra Club, discussed the importance of renewable and local energy production. He noted that the project fits within the comprehensive plan and would provide economic benefits to the County.

Debra Nicholson, County resident and co-leader of Citizens' Climate Lobby, argued that as a retired city planner that she is aware of the requirements and conditions the project must follow. She supports landscaping the project with local plants.

The meeting recessed at 11:12 a.m. and resumed at 11:24 a.m.

The Clerk administered the oath to David Begley, a Lincoln attorney representing landowners (the sign-in sheets for these testifiers is Exhibit 10). He presented documents to the Board (Exhibit 11). He requested the hearing stay open after the meeting ends so a records request can be fulfilled. Vest, Derbin, and Begley discussed the records request. Barness advised the Board to follow the procedures in Resolution R-24-0042. Vest stated the hearing would be closed after the testimony ends.

Begley asked all opponents to stand. He argued that landowners will face financial losses if the project is constructed. He noted the project is not in compliance with local zoning and would present risk because there are times it is not sunny. He argued the project breaks state law and encouraged Board members to follow the law. Solar panels are not in harmony with the surrounding area and are not an agricultural use.

The Clerk administered the oath to the next testifiers called forward.

Torri Lienemann, County resident, reviewed a power point presentation (Exhibit 12). She asked for proponents of the project to stand. She displayed photos of the location of her ranch and the solar project. She discussed the risk to birds due to the “lake effect hypothesis.”

Skylar Lienemann, County resident, continued to review the power point presentation and discussed risks to migratory birds. Torri Lienemann provided more details of a study on the potential danger to birds.

Kim Topp, County resident and real estate broker, presented documents to the Board (Exhibit 13). She discussed the effects the solar project could have on property values.

Bruce Topp, County resident, presented documents (Exhibit 14) and expressed opposition to the solar project due to the potential effect on property values. He said this could have a negative effect on County property tax revenues.

Drew Topp, County resident, presented pictures of his home and land (Exhibit 15). He argued the solar project is not in harmony with the surrounding area. He complained about the potential noise and light pollution.

The Clerk administered the oath to the next testifiers called forward.

Kraig Shaw, County resident, expressed opposition because the solar panels would surround his property on three sides, and he was worried about the safety of the panels. He asked the Board to increase the setback distance if the project moves forward. Vest asked him to point out the location of his property.

Amanda Shaw, County resident, expressed opposition because of the proximity of the proposed solar panels to her property. She asked the Board to increase the setback distances.

Andrew Stastny, County resident, presented documents (Exhibit 16). He discussed concerns with the project and NextEra, including environmental effects, transparency issues, and unethical practices.

Kimberly Robinson, County resident, presented documents (Exhibit 17). She discussed concerns with a lack of transparency to local residents, lack of a traffic study, the impact on safety and property values, and lack of a decommissioning plan.

Isaac Robinson, County resident, presented documents on the solar life cycle (Exhibit 18). He discussed concerns with increased traffic of commercial loads, lack of road study, and solar waste after decommissioning.

The Clerk administered the oath to the next testifiers called forward.

Aaron Deunk, County resident, presented documents (Exhibit 19). Deunk expressed opposition due to the risk of erosion and fire safety concerns.

Matt Slauson, County resident, discussed fire safety concerns, citing a previous fire event in 2022 and recent California fires.

Darin Schwaninger, County resident, presented documents and discussed the carbon market (Exhibit 20). Schwaninger expressed opposition due to concerns with decreased property values and provided information on carbon sequestration.

Derek Kotschwar, County resident, presented map of the area (Exhibit 21). He displayed and discussed the density of the homes around the project.

Sandy Hermes, County resident, presented documents (Exhibit 22). Hermes expressed opposition to the project and shared concerns with the decommissioning plan.

The meeting recessed at 1:00 p.m. and resumed at 1:10 p.m.

The Clerk administered the oath to the next testifiers called forward.

Dennis Hermes, County resident, expressed concerns with the decommissioning of solar panels. He also shared information on solar contractors that have declared bankruptcy in 2023 and 2024 nationally.

Ben Pomajzl, County resident, presented documents on the dangers of lithium-ion batteries (Exhibit 23). He cited several fire events at lithium-ion energy storage facilities. He also discussed the company CTAL.

Kurt Oates, County resident, expressed concerns with solar energy reliability.

Cami Slauson, County resident, expressed concerns about site locations and presented documents showing seventeen locations from both sides of the road (Exhibit 24).

Daniel Oldemeyer, County resident, expressed concerns on the impact of the agricultural industry.

Kent Harlan, Beatrice resident, expressed concerns about family legacy and property values.

Judy Daugherty, County resident, expressed concerns of severe weather risk and the damage the solar panels could cause. She presented pictures of damage to her home, a wind map, and picture of destroyed solar panels in Scottsbluff (Exhibits 25).

Mike Summers, County resident, expressed opposition due to concerns with land erosion and fire hazards.

Todd Harlan, County resident, expressed opposition due to potential severe weather destruction debris and clean up.

Jeff DeBoer, County resident, expressed opposition due to concerns with fire hazards and property taxes in neighboring counties.

The Clerk administered the oath to the testifiers in neutral (the sign-in sheets for these testifiers is Exhibit 26).

Ryan Skillet, Hallam Volunteer Fire Department discussed fire response tactics, preventative measures, and fire fighter safety. Skillet also discussed Hallam emergency medical services (EMS). Flowerday and Skillet discussed primary and mutual aid fire responses.

Thomas Emerson, County resident, discussed rural farming, wind and solar power, and the local trade workforce.

Randy Dink, County resident, discussed the Hallam Volunteer Fire Department's response tactics, personnel, and equipment.

Schulte asked Wesselhoft if the solar farm is an agricultural use. Wesselhoft stated the special permit allows for permitted and conditional use in agricultural zoning.

The Clerk noted correspondence had been received in support from Todd Paddock, Roger Wess, David Corbin, Christine Cary, Ginny Masse, Patti Jones, John Hansen, President of Nebraska Farmers Union, Don Schnier, Paul Korslund, The Lincoln Chapter of Citizens Climate Lobby, David Schoenmaker, Gregory

Schwaninger, Bryan Hermsen, Julie Diegel, Cindy Schwaninger, Marilyn McNabb, Doug and Barb Hellerich, Gene Hanlon, Lucas Sabalka, Kathy Tschetter, Lorrie Benson, Laurel Van Ham, Martha Horvay, Mark Brohman, Wachiska Audubon Society, Josh Moenning, New Power Nebraskan, and Bethany Brunsman. Correspondence had been received and opposition from Bruce Topp, Kim Topp, Donna Rejcha, Mitchell Estrada, Bob Bettenhausen, Isaac Robinson, Kent Thompson, Sheila Taylor, Myron Heusinkvelt, Darin Schwaninger, Joetta Schwaninger, Kimberly Robinson, Drew Topp, Brande Payne, Janette Payne, Donna Robinson, Michael Block, Deb Harlan Waymire, Pamela Wilson, Dave Begley, Attorney, and Claudia and Roger Severin. (Correspondence received prior to the meeting is on file in the County Clerk's Office.)

Levy and Jones provided rebuttal comments. Jones provided a business card for his contact information. Levy addressed decommissioning concerns and provided a process on decommissioning. Levy and Jones addressed severe weather and natural disaster destruction mitigation and recovery. Jones also provided rebuttal discussion on fire response concerns, mentioning the emergency action plan.

Yoakum asked Jones to clarify on fire response access and equipment. Jones responded with information on access points, water supply, and battery components. Flowerday mentioned there were provisions in the Salt Creek solar project regarding training, access codes, etc. and supports adding those same provisions in this project. Levy stated they welcome those conditions. Flowerday asked if the inverter station lithium batteries are supplied by CTAL, further mentioning that the CTAL company has been added to the Department of Defense (DoD) blacklist in the last week. Jones stated they plan to follow DoD, state, and federal requirements. Levy mentioned recent legislature enforces disclosures requirements for issue like this.

Schulte asked Jones if he lives around this area or around a solar farm, and Jones replied. Schulte asked if he understands the concerns and impact of the proximity of a solar farm, and Jones replied. Schulte and Levy discussed property values and the peer reviewed study from the Salt Creek solar project. Schulte asked if Jones, the Panama Energy Center, or NextEra provided campaign funding to County Commissioners. Jones and Levy provided a response. Schulte stated providing campaign funding creates a conflict of interest for County Commissioners.

Johnson asked a follow-up question regarding the vegetation management plan, Jones and Levy replied. Johnson asked several questions regarding noxious weed management on the property, and Jorgensen and Jones replied. Flowerday and Jones discussed screening requirements.

Vest discussed fire response, salvage value, and the response to disaster damage debris with the applicant. Vest asked if there was a study completed by NextEra on birds. Jorgensen provided information of a scientific publication on the lake effect (Exhibit 27). Vest asked if there have been any negative repercussions out of the Saunders County solar project, and Levy replied with two identified issues.

Vest announced Board members would list any ex parte communications they received on advice from the County Attorney's Office. He said he forwarded email communications he had had with the applicant to the County Clerk's Office to be part of the record (Exhibit 28). Yoakum said she received one email from a proponent. She has not had any communications with the applicant since October. Schulte and Johnson each said they received one text message. Flowerday said he had not received any emails other than those that had been received by the shared commissioner email address.

Vest reviewed the next steps in the application appeal process. The issue will be on next week's agenda. Further testimony will not be allowed.

Vest closed the public hearing.

There were further concerns stated from the audience (inaudible). Vest repeated a decision would be made the following week.

6. **PUBLIC COMMENT** - Members of the public wishing to speak on items relating to County business not on the agenda may do so at this time. Each speaker is limited to one appearance of up to five minutes, and that time may not be reserved, transferred, or otherwise assigned to other speakers. These time limits may be extended or reasonably decreased at the discretion of the Chair.

Duane Rauscher, County resident, expressed concerns about future projects in the County and election security and asked for transparency.

7. **ANNOUNCEMENTS**

- A. The Lancaster County Board of Commissioners will hold a staff meeting on Thursday, January 16, 2025, at 8:30 a.m. in Room 112 of the County-City Building (555 S. 10th Street, Lincoln).
- B. The Lancaster County Board of Commissioners will hold the following meetings and public hearings Tuesday, January 21, 2025, at 9:00 a.m. in Room 112 of the County-City Building (555 S. 10th Street, Lincoln).
1. Regular meeting
 2. Public hearing regarding Text Amendment 24012 to amend Articles 2, 4.005, 4.007, 13 and repealing Articles 2.002 A, 4.005, 4.007 as hitherto existing of the Lancaster County Zoning Regulations.
 3. Public hearing regarding Comprehensive Plan Amendment 24006 regarding a request to adjust the Priority Growth Areas map, Future Service Limit, and Future Land Use map in the 2050 Comprehensive Plan for approximately 193 acres located near 84th Street and Rokeby Road.
 4. Board of Equalization
- C. County Commissioners can be reached at 402-441-7447 or commish@lancaster.ne.gov.
- D. The Lancaster County Board of Commissioners meeting is broadcast live on LNKTV (LNKTV.lincoln.ne.gov). LNKTV is available on Allo channel 2 and Spectrum channel 1300. For the rebroadcast schedule visit lincoln.ne.gov (keyword: LNKTV). Meetings are also streamed live on YouTube and Facebook (youtube.com/@lancastercountynebraska/streams and facebook.com/lancasterne). LNKTV apps are also available on Roku, Apple TV, and Amazon Fire TV.

8. **ADJOURNMENT**

MOTION: Yoakum moved and Flowerday seconded to adjourn at 3:18 p.m. Schulte, Yoakum, Flowerday, Johnson, and Vest voted yes. Motion carried 5-0.



Matt Hansen
Lancaster County Clerk

